

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 12/16/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER

ABOVE.
Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdIhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdIhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: L23-03046

CASE NAME: DISCOVER BANK VS. DANNY LAM

*HEARING ON MOTION IN RE: MTN TO ENTER JUDGMENT PURSUANT TO CCP BY PLAINTIFF ON 9-25-25

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on September 25, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed on April 18, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Danny Lam ("Defendant") in the amount of \$11,424.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 25, 2025 ("Supporting Declaration"), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of **\$14,219.52 plus costs**, less credits for payments made, in the event of a default. *Id.*, **Exhibit A**, ¶¶2-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$9,935.52 due and owing, plus costs of \$502.10. See Memorandum of Costs filed September 25, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$9,935.52, plus costs of \$502.10, for a total judgment of \$10,437.62.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is

hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L24-05099

CASE NAME: CAPITAL ONE, N.A. VS. MAI QUEZADA

*HEARING ON MOTION IN RE: TO SET ASIDE CCP 664 DISMISSAL AND ENTER JUDGMENT AGAINST DEFENDANT

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion to Set Aside CCP 664.6 Dismissal and Enter Judgment on October 8, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed on September 19, 2025 (the "Settlement Agreement"), the terms of which included payment by the defendant Mai K Quezada ("Defendant") in the amount of \$11,229.61, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Laura M. D'Anna filed October 8, 2025 ("Supporting Declaration"), ¶¶3-5 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit 1**, ¶¶1-4.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶9. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶¶4 and 10.

There remains \$11,229.61 due and owing, plus costs of \$597.00. See Supporting Declaration, ¶¶6 and 11.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$11,229.61, plus costs of \$597.00, for a total judgment of \$11,826.61.
4. Any prior dismissal entered herein against the Defendant is hereby set aside.

5. The Court shall issue the order after hearing.
6. Plaintiff to submit a form of money judgment against Defendant.

3. 9:00 AM CASE NUMBER: L24-06199

CASE NAME: BANK OF AMERICA, N.A. VS. ALBERTO VAZQUEZ

*HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment Pursuant to Stipulation on October 8, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement on or about April 21, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Alberto Patino Vazquez ("Defendant") in the amount of \$12,410.34, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Michael Mallonga filed October 8, 2025 ("Supporting Declaration"), ¶¶3-5 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment for the foregoing amount plus court costs, less credit for any payments made, in the event of a default. *Id.*, **Exhibit 1**, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶6. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶7.

After credit for amounts paid, there remains \$7,710.34 due and owing, plus costs of \$916.50, for a total of \$8,626.84. See Supporting Declaration, ¶¶6-7 and **Exhibit 2** thereto.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.***
2. Subject to Paragraph 1 above, the Court finds that Defendant is in default of the

Settlement Agreement.

3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$7,710.34, plus costs of \$916.50, for a total judgment of \$8,626.84.
4. Subject to Paragraph 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

4. 9:00 AM CASE NUMBER: L24-09985

CASE NAME: WELLS FARGO BANK, N.A. VS. JENNIFER RODA

*HEARING ON MOTION FOR DISCOVERY MTN TO DEEM REQ FOR ADMISSIONS ADMITTED FILED BY PLN ON 9/25/25

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Deem Requests for Admissions Admitted on September 25, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 16, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Jennifer Guptill Roda ("Defendant") with a Requests for Admission (Set One). See Declaration of Pearse F. Early filed September 25, 2025 ("Supporting Declaration"), ¶1 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on June 3, 2025 by mail. *Id.* at ¶1 and **Exhibit A** [attached Declaration of Service dated June 3, 2025 (the "Proof of Service")].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 8, 2025 (30 days from and after June 3, 2025 was July 3, 2025 and five calendar days thereafter fell on July 8, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶2.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148

Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

5. 9:00 AM CASE NUMBER: L25-03562
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. HUMBERTO VARGAS
HEARING ON SUMMARY MOTION
FILED BY: VARGAS, HUMBERTO
TENTATIVE RULING:

Defendant Humberto Vargas (“Defendant”) filed a Motion for Summary Judgment on September 11, 2025 (the “MSJ”). The MSJ was set for hearing on December 16, 2025.

Background

Defendant contends that it is entitled to summary judgment as a matter of law because

there is no triable issue of fact and it is entitled to summary adjudication as to each of Plaintiff Jefferson Capital Systems, LLC's ("Plaintiff") causes of action, which include Open Book Account, Account Stated, Money Had and Received, Money Lent and Money paid, Laid out, and Expended for Defendant at Defendant's Special Instance and Request. See MSJ filed September 11, 2025, Memorandum of Points and Authorities ("Plaintiff's MPA"), p. 1 *et seq.*

The causes of action pled in Plaintiff's Complaint are based on the allegation that Defendant became indebted for unpaid amounts in connection with a credit card account issued by Plaintiff's predecessor-in-interest, Synchrony Bank. See Complaint filed April 2, 2025. Defendant alleges that it is a debt buyer and the sole owner/assignee of Synchrony Bank's rights and obligations with respect to the subject credit card account and related indebtedness. *Id.* at p. 2, ¶9.

No opposition papers have been filed.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Procedural Defects Regarding Defendant's MSJ

Defendant's MSJ is procedurally defective. For this reason alone, the Court would deny the motion.

Defendant has failed to file a proper Separate Statement of Undisputed Material Facts. A party moving for summary judgment must support the motion with a Separate Statement that sets forth plainly and concisely all material facts that the moving party contends are undisputed, and each of the material fact must be followed by a reference to the supporting evidence. Code Civ. Proc. § 437c(b) and (f); see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 13.19. Although Defendant's MSJ paper contains a section with a header labeled "STATEMENT OF UNDISPUTED MATERIAL FACTS," that is not a proper Separate Statement which complies with the applicable rules and requirements.

Among other formatting requirements, a Separate Statement must separately identify each cause of action that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to the cause of action. See Rule 3.1350(d) of the California Rules of Court (CRC). Defendant's paper does not do that. Seven purported issues are described without reference to any particular causes of action and without properly formatted citations to submitted evidence.

First Cause of Action: Common Counts (Open Book Account)

Even if not procedurally defective, the Court would deny Defendant's MSJ on the merits.

The elements of an open book account cause of action are: (1) that plaintiff and defendant had financial transactions; (2) that plaintiff kept an account of the debits and credits involved in the transactions; (3) that defendant owes plaintiff money on the account; and (4) the amount of money that defendant owes plaintiff. *State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449.

Plaintiff's evidence consists largely of reference to responses by Plaintiff as to Requests for Admissions (the "RFAs") and various account records produced in discovery.

Defendant fails to articulate why and proffer evidence showing that one or more elements of Plaintiff's open book account cause of action cannot be established. Rather Defendant makes references to there being no signed agreement and discusses caselaw regarding a breach of contract claim. Defendant is not being sued for breach of contract. Moreover, Defendant's evidence and arguments utterly fail to account for Plaintiff's theory of recovery that Plaintiff is the successor-in-interest as the assignee of the original creditor on the account.

Defendant fails to carry his initial burden of production to make a *prima facie* showing of material fact(s) showing that the elements of this cause of action cannot be established or that there is a complete defense to it. Therefore, the burden of production to make a *prima facie* showing of the existence of a triable issue of material fact does not shift to Plaintiff.

Defendant also fails to carry his burden of persuasion to show that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto.

Accordingly, the Court denies the MSJ as to Plaintiff's first cause of action for Open Book Account.

Remaining Common Count Theories Pled under First Cause of Action

Plaintiff has also pled alternate forms of common counts under the First Cause of Action. See Complaint filed April 2, 2025, Attachment, p. 3 (First Cause of Action).

The Court need not consider the alternate pled theories and whether Defendant is entitled to summary judgment as to such theories. Defendant failed to move for summary adjudication and the Court cannot grant summary judgment on less than all of the causes of action in a plaintiff's complaint. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 10:26. A single viable theory of recovery on a cause of action defeats Defendant's MSJ.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. The Court shall issue the order.

6. 9:00 AM CASE NUMBER: L25-03679
CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
*HEARING ON MOTION IN RE:
FILED BY: BANK OF AMERICA N.A.
TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 16, 2025.

Background

In light of the Court's ruling on a recent Motion for Relief from Waiver of Objections to Interrogatories and for Leave to Serve Late Responses on October 9, 2025 (the "Motion for Relief from Waiver") by defendant Tenisha M Gardner ("Defendant"), the Court ordered the parties to meet and confer regarding the Motion to Deem Admissions. See Order entered

December 2, 2025.

Disposition

The Court further finds and orders as follows:

1. **PARTIES ARE ORDERED TO APPEAR** to address their meet and confer regarding the Motion to Deem Admissions, unless the matter is resolved, in which case, the parties may advise the departmental clerk that the motion is to be dropped from calendar.

7. 9:00 AM CASE NUMBER: L25-04949
CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. TAYLOR LOVE
*HEARING ON MOTION IN RE: ORDER DEEMING REQ FOR ADMIS TO DEF ADMIT AND FOR MONETARY SANCTIONS
FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I
TENTATIVE RULING:

Plaintiff Southwood Financial LLC (“Plaintiff”) filed a Motion for Order Deeming Request for Admissions to Defendant Admitted and for Monetary Sanctions on September 29, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 16, 2025. The motion is opposed.

Background

Plaintiff served Defendant Taylor Love (“Defendant”) with a Requests for Admission (Set One). See Declaration of Laura M. D’Anna filed September 29, 2025 (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on July 10, 2025 by mail. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated July 10, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before August 14, 2025 (30 days from and after July 10, 2025 was August 9, 2025 and five calendar days thereafter fell on August 14, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Defendant filed an opposition paper. See Defendant’s Opposition to Plaintiff’s Motion to Deem Requests for Admission Admitted and for Monetary Sanctions filed December 2, 2025 (“Opposition”). Defendant indicates that “Defendant misunderstood that further discovery responses were needed given ongoing negotiations, but has now served verified responses.” See Opposition, p.2; see also Declaration of Taylor Love filed December 2, 2025 (“Opposition Declaration”) ¶7.

No reply papers have been filed with the Court.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

A responding party's service, before the hearing on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776; see also CJER, *California Judges Benchbook: Civil Proceedings - Discovery* (2024) ("CJER Civ. Proc. Discovery"), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. After the filing of the subject Motion to Deem Admissions, Defendant served Plaintiff with responses to the RFAs. Those responses were verified and substantially code compliant.

Sanctions

1. Defendant's failure to respond to the RFAs constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).
2. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the RFAs, the Court finds that

Defendant did not act with substantial justification.

3. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. Code Civ. Proc. § 2033.280(c); see *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776 (“The court must also impose monetary sanctions upon the party and/or the attorney for the failure to serve a timely response to the RFAs.”).
4. The Court has considered the appropriate amount of monetary sanctions. In fixing the amount of monetary sanctions, the Court has considered all evidence in the record before the Court, including the Supporting Declaration and Opposition Declaration. The Supporting Declaration contain what appear to be erroneous statements as to scope of work performed, referencing “reviewing the evasive responses, drafting the meet and confer correspondence...” See Supporting Declaration, ¶15. No discovery responses had been received as of the date of the original Supporting Declaration and no meet and confer was described in the Supporting Declaration, so these portions of the described work appear to be in error. Moreover, the other estimated time did not come to pass, as responses were served and no reply filed. In addition, as noted above, the amount of sanctions is mitigated by the service of substantially code compliant responses after the filing of the motion. The Court reduces the time to one half hour (0.50 hrs.) at the stated hourly rate of \$250.00, plus a \$60.00 filing fee. The Court finds that such sanctions are reasonable expenses, including attorneys’ fees, incurred by Plaintiff as a result of the foregoing sanctionable conduct by Defendant.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is DENIED IN PART and GRANTED IN PART.
2. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$185.00** (the “Monetary Sanctions”). The Monetary Sanctions shall be paid within thirty (30) days from notice of entry of this order. The motion is otherwise DENIED.
3. The Court shall issue the order after hearing.

8. 9:00 AM CASE NUMBER: L25-05764

CASE NAME: CAPITAL ONE N.A. VS. ALLEN BREZAC

***HEARING ON MOTION IN RE:**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff Capital One, N.A. (“Plaintiff”) filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 16, 2025.

The motion is unopposed.

Background

Plaintiff served Defendant Allen Brezac (“Defendant”) with a Requests for Admission (Set One). See Declaration of Brian Langedyk filed October 6, 2025 as part of Motion to Deem Admissions (“Supporting Declaration”), ¶12 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on July 16, 2025 by mail. *Id.* at ¶13 and **Exhibit 1 [attached Proof of Service dated July 16, 2025 (the “Proof of Service”)]**.

With a five-calendar day extension for service of the RFAs by mail, the responses were due to be served on or before August 20, 2025 (30 days from and after July 16, 2025 was August 15, 2025 and five calendar days thereafter fell on August 20, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶13.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion papers. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.***
2. Subject to Paragraph 1 above, the Motion to Deem Admissions is GRANTED.
3. The truth of the facts recited in Attachment 1, Nos. 1 through 8, to RFA No. 1 are DEEMED ADMITTED by Defendant.
4. The genuineness of the document attached to the RFAs (defined as the “Terms and Conditions”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
5. A proposed form of order was lodged with the Court which the Court shall execute and enter.

9. 9:00 AM CASE NUMBER: L25-10332
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. SHELLY ROBINSON
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY:
TENTATIVE RULING:

Defendant Shelly Robinson (“Defendant”) filed a Motion to Compel Arbitration and Stay Proceedings on October 31, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on December 16, 2025.

A Proof of Service of the motion on the plaintiff American Express National Bank (“Plaintiff”) has been filed.

Plaintiff filed an Opposition on December 1, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties’ agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by

law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant’s motion contends that the parties’ contract contains “an arbitration clause allowing either party to elect arbitration...” See Declaration of Shelly Robinson attached as part of Arbitration Motion, p. 3, ¶3.

Although the referenced cardmember agreement with the arbitration clause is not attached to the motion papers, Plaintiff’s Opposition concedes that the subject cardmember agreement contains an arbitration clause and attaches a copy. See Declaration of Eric. J. Jun dated December 1, 2025 (“Jun Decl.”) and **Exhibit A** thereto (the “Cardmember Agreement”).

Accordingly, the Court finds that a written agreement to arbitrate exists (the “Arbitration Agreement”), as set forth in the Cardmember Agreement. See Cardmember Agreement, p. 6, Jun Decl., **Exhibit A**. The Arbitration Agreement is governed by the FAA.* *Id.* (“This Arbitration provision is governed by the FAA.”).

The Court further finds that there is a controversy between the parties that is subject to the Arbitration Agreement. It is evident that the claims at issue in this action, as pled in the operative Complaint by Plaintiff, are within the scope of and subject to that agreement.

The Court has considered and rejects Plaintiff’s contention that the motion should be denied because Plaintiff has not served a “claim notice or Demand for Arbitration form.” Defendant’s motion constitutes a demand and notice for arbitration in accordance with the terms of the Arbitration Agreement. See Arbitration Agreement, “Initiating Arbitration” (“Before beginning arbitration, you or we must first send a claim notice.”).

Moreover, a formal demand is not necessarily a prerequisite to seeking a court order compelling arbitration. See *Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577. Rather, it only need be shown that the other party has refused to arbitrate. *Id.* Plaintiff’s filing of a lawsuit and its opposition to the pending motion—which

Defendant promptly filed and served early in this litigation—is sufficient to show refusal or failure to arbitrate the controversy.

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall select the arbitration forum, JAMS or AAA (the “Arbitration Service Provider”) and contact such Arbitration Service Provider to initiate the arbitration process in accordance with the Arbitration Agreement and the rules of the Arbitration Service Provider.**
3. The pending action is STAYED until an arbitration is completed pursuant to the terms and conditions of the Arbitration Agreement or further order of the Court.
4. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

10. 9:00 AM CASE NUMBER: L25-10335

CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. SHELLY ROBINSON

***MOTION/PETITION TO COMPEL ARBITRATION COMPEL ARBITRATION AND STAY PROCEEDINGS
FILED BY:**

TENTATIVE RULING:

Defendant Shelly Robinson (“Defendant”) filed a Motion to Compel Arbitration and Stay Proceedings on October 31, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on December 16, 2025.

A Proof of Service of the motion on the plaintiff American Express National Bank (“Plaintiff”) has been filed.

Plaintiff filed an Opposition on December 1, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) ("FAA") applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant's motion contends that the parties' contract contains "an arbitration clause allowing either party to elect arbitration..." See Declaration of Shelly Robinson attached as part of Arbitration Motion, p. 3, ¶3.

Although the referenced cardmember agreement with the arbitration clause is not attached to the motion papers, Plaintiff's Opposition concedes that the subject cardmember agreement contains an arbitration clause and attaches a copy. See Declaration of Eric. J. Jun dated December 1, 2025 ("Jun Decl.") and **Exhibit A** thereto (the "Cardmember Agreement").

Accordingly, the Court finds that a written agreement to arbitrate exists (the "Arbitration Agreement"), as set forth in the Cardmember Agreement. See Cardmember Agreement, p.

7, Jun Decl., **Exhibit A**. The Arbitration Agreement is governed by the FAA.* *Id.* (“This Arbitration provision is governed by the FAA.”).

The Court further finds that there is a controversy between the parties that is subject to the Arbitration Agreement. It is evident that the claims at issue in this action, as pled in the operative Complaint by Plaintiff, are within the scope of and subject to that agreement.

The Court has considered and reject’s Plaintiff’s contention that the motion should be denied because Plaintiff has not served a “claim notice or Demand for Arbitration form.” Defendant’s motion constitutes a demand and notice for arbitration in accordance with the terms of the Arbitration Agreement. See Arbitration Agreement, “Initiating Arbitration” (“Before beginning arbitration, you or we must first send a claim notice.”).

Moreover, a formal demand is not necessarily a prerequisite to seeking a court order compelling arbitration. See *Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577. Rather, it only need be shown that the other party has refused to arbitrate. *Id.* Plaintiff’s filing of a lawsuit and its opposition to the pending motion—which Defendant promptly filed and served early in this litigation—is sufficient to show refusal or failure to arbitrate the controversy.

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall select the arbitration forum, JAMS or AAA (the “Arbitration Service Provider”) and contact such Arbitration Service Provider to initiate the arbitration process in accordance with the Arbitration Agreement and the rules of the Arbitration Service Provider.**
3. The pending action is STAYED until an arbitration is completed pursuant to the terms and conditions of the Arbitration Agreement or further order of the Court.
4. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in

180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

11. 9:00 AM CASE NUMBER: MSL16-00896

CASE NAME: LOBEL FINANCIAL CORP VS. BREANNE WEST

***HEARING ON MOTION IN RE: VACATE DEFAULT AND DEFAULT JUDGMENT FILED BY: WEST, BREANNE**

FILED BY:

TENTATIVE RULING:

Defendant and Judgment Debtor Breanne West (“Defendant”) filed a Motion to Vacate Default and Default Judgment on August 15, 2025 (“Motion to Set Aside Default”). The Motion to Set Aside Default was initially set for hearing on November 17, 2025. The hearing was later continued to December 16, 2025. The motion is opposed.

Background

Plaintiff and Judgment Lobel Financial Corp. (“Plaintiff”) filed a Complaint on March 21, 2016.

A Proof of Service of Summons was filed May 2, 2016 (the “5/2/16 POSS”). The 5/2/16 POSS reflects substitute service on Defendant on April 13, 2016 at an address of 1100 Howe Ave #132, Sacramento, California, by delivery to “Co-Occupant” D.J. Watts. 5/2/16 POSS, ¶¶3-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on June 2, 2017 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on July 6, 2017 (the “Default Judgment”).

Defendant’s motion is supported by the Declaration of Breanne West filed August 15, 2025 as part of the Motion to Set Aside Default (the “Supporting Declaration”).

Plaintiff filed an opposition to Defendant’s Motion to Set Aside Default on October 29, 2025, including an opposition Declaration of Dianne Cravens (“Opposition Declaration”).

Analysis

1. Lack of Actual Notice of the Pending Lawsuit.

Defendant seeks relief under Code of Civil Procedure section 473.5.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

The service was done by a registered process server. See 5/2/16 POSS at ¶7. This raises a

presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

The Court need not consider whether Defendant's Supporting Declaration proffers evidence to rebut the presumption of valid service because Defendant cannot, at this stage, obtain relief under Code of Civil Procedure section 473.5. Such relief is time barred.

There are certain deadlines for a defendant to bring a motion to set aside a default under Code of Civil Procedure section 473.5. See Code Civ. Proc. § 473.5(a) ("The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.").

However, it appears that longer time limits apply here. Civil Code section 1788.61 provides that "[n]otwithstanding Section 473.5 of the Code of Civil Procedure, if service of a summons has not resulted in actual notice to a person in time to defend an action brought by a debt buyer and a default or default judgment has been entered against the person in the action, the person may serve and file a notice of motion and motion to set aside the default or default judgment and for leave to defend the action." Civ. Code § 1788.61(a)(1). This statute contains longer outside time limits. See *id.* at § 1788.61(a)(2) [relief must be sought within a reasonable time, but in no event exceeding the earlier of: (a) six years after entry of the default or default judgment against the person or (b) one hundred eighty days of the first actual notice of the action]. These longer time periods only apply in cases involving a plaintiff "debt buyer."

A "Debt buyer" means a person or entity that is regularly engaged in the business of purchasing charged-off consumer debt for collection purposes, whether it collects the debt itself, hires a third party for collection, or hires an attorney-at-law for collection litigation. Civ. Code § 1788.50(a). "Debt buyer" does not mean a person or entity that acquires a charged-off consumer debt incidental to the purchase of a portfolio predominantly consisting of consumer debt that has not been charged off. *Id.*

The record here appears to reflect that Plaintiff is a "debt buyer" within the meaning of Civil Code section 1788.61. Plaintiff's own allegations include that it is not the originator of the subject debt but purchased the account from the originator for purposes of collection. See Complaint filed March 21, 2016, ¶16.

Either way, it is evident that by any possible calculation, the time has long passed for Defendant to obtain relief under Code of Civil Procedure section 473.5. The Judgment was entered **more than eight years** before Defendant's motion was filed and served.

2. Defendant Fails to Establish that the Default Resulted from Mistake, Inadvertence, Surprise, or Excusable Neglect.

Defendant also seeks relief under Code of Civil Procedure section 473(b).

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

First, the evidence proffered by Defendant does not describe any specific mistake, inadvertence, surprise, or excusable neglect that led to the Default and/or Default Judgment. It simply asserts that no notice was received based on the service done. Therefore, there are no grounds for relief under Code of Civil Procedure section 473(b).

Even if grounds for relief under Code of Civil Procedure section 473(b) were shown, such relief is also barred by the passage of time.

Relief under Code of Civil Procedure section 473(b) must be brought within a reasonable time, but no later than six months after entry of the default judgment. Code Civ. Proc., § 473(b) (“ Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”); see CJER, *California Judges Benchbook: Civil Proceedings—After Trial* (2024) (“CJER Civ. Pro.—After Trial”), § 1.16.

It is clear that Defendant knew of the Default Judgment as far back as 2018. The Court takes judicial notice of the Court’s own docket which reflects that Defendant filed a Claim of Exemption as to judgment enforcement proceedings on November 5, 2018. Defendant actually appeared in court on later judgment enforcement proceedings in 2024. At Defendant’s request, a garnishment was reduced at that time and the judgment obligation discussed in open court. See Minute Order dated March 21, 2024. Moreover, Plaintiff has proffered written correspondence from and to Defendant from 2018 showing Defendant was aware of the Default Judgment by 2018. See Opposition Declaration, ¶¶8-9 and **Exhibits A and B** thereof.

Defendant failed to act within a reasonable to time to seek to set aside the Default Judgment.

3. Defendant Fails to Establish that the Default and Entry of Default Judgment Thereon Should be Set Aside as Void.

Even if the Court construes the relief requested by Defendant as being a request to vacate a judgment void for lack of service under Code of Civil Procedure section 473(d), the Court would not grant such relief at this stage.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure

section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397. A party seeking relief under the court's equitable powers must satisfy the elements of a “stringent three-pronged test”: (1) a satisfactory excuse for not presenting a defense, (2) a meritorious defense, and (3) diligence in seeking to set aside the default. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.

A motion to set aside a void default judgment may be filed at any time. See CJER Civ. Pro.—After Trial, § 1.82; see also *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 216.

Even if Defendant could somehow show service was not properly done back in 2018 or demonstrate other extrinsic factors prevented Defendant from presenting a defense, Defendant failed to act diligently to seek to set aside the Judgment by any reasonable measure.

As discussed above, despite knowing of the Default Judgment as far back as 2018, Defendant did not seek to prosecute this motion until 2025. In addition—and importantly—Defendant initiated multiple proceedings to challenge Plaintiff’s judgment collection efforts over the course of many years without seeking to set aside the Default Judgment. Setting aside the Default Judgment now would operate to the substantial prejudice of Plaintiff who, as the judgment creditor, was required to participate in and defend, repeatedly, against claims of exemption on a judgment which Defendant now seeks to have voided completely. Defendant’s neglect in challenging the Default Judgment under these circumstances was inexcusable. *In re Marriage of Park* (1980) 27 Cal.3d 337, 345 (“...a motion to vacate a judgment should not be granted where it is shown that the party requesting equitable relief has been guilty of inexcusable neglect or that laches should attach.”).

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside Default is DENIED.

2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: MSL17-01582

CASE NAME: THE BEST SERVICE CO VS APRIL A. APRESTO

*HEARING ON MOTION IN RE: FOR DEFAULT ON CONDITIONAL SETTLEMENT AGREEMENT AND
STIPULATION FOR JUDGMENT

FILED BY: THE BEST SERVICE CO., INC.

TENTATIVE RULING:

Plaintiff The Best Service Co. Inc. ("Plaintiff") filed a Motion for Default on Conditional Settlement and Stipulation for Judgment on September 30, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed September 6, 2017 (the "Settlement Agreement"), the terms of which included payment by the defendants April A. Apresto and Naiche R. Freeman ("Defendants") in the amount of \$8,316.74, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Christopher Vasquez filed September 30, 2025 as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶4 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default, in the foregoing principal amount (\$6,529.94) plus prejudgment interest (\$1,995.38), attorneys' fees (\$941.80) and costs (\$845.00), for a total of \$10,312.12. *Id.*, **Exhibit A**, ¶2.

Defendants defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶5-6. Defendants failed to cure after notice. *Id.* at ¶6 and **Exhibit B** thereto.

A total of \$6,040.00 in payments were made by Defendants. *Id.* at ¶5. After credit for amounts paid, there remains \$489.94* principal due and owing, plus the prejudgment interest of \$1,995.38, the attorneys' fees of \$941.80 and the costs of \$845.00, for a total judgment of **\$4,272.12**.

*Plaintiff's Supporting Declaration refers to a higher principal sum of \$1,598.94 and a total of \$4,536.12. *Id.* at ¶5. However, Plaintiff fails to adequately account for the calculation of these higher sums.

Analysis

Defendants were duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendants were duly served with the motion.

2. The Court finds that Defendants are in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendants in the principal amount of \$489.94, plus prejudgment interest of \$1,995.38, attorneys' fees of \$941.80 and costs of \$845.00, for a total judgment of \$4,272.12.
4. The Court shall issue the order after hearing.
5. Plaintiff to submit a proposed form of money judgment against Defendants. Any prior dismissal entered herein against the Defendants is hereby set aside in connection with entry of such judgment.

13. 9:00 AM CASE NUMBER: MSL21-01906
CASE NAME: JPMORGAN CHASE VS CYNTHIA WARRENDER
***HEARING ON MOTION IN RE:**
FILED BY: WARRENDER, CYNTHIA L
TENTATIVE RULING:

Defendant and judgment debtor Cynthia L Warrender ("Defendant") filed a Motion to Vacate Default and Default Judgment on October 6, 2025 (the "Motion to Vacate Judgment"). The Motion to Vacate Judgment was set for hearing on December 16, 2025. A Proof of Service regarding the Motion to Vacate Judgment was filed November 4, 2025. No opposition was filed.

Background

Plaintiff and Judgment creditor JPMorgan Chase Bank, N.A. ("Plaintiff") filed a Complaint on September 3, 2021. A default was entered against Defendant on January 3, 2022 (the "Default"). Thereafter, a default money judgment was entered on September 1, 2022 against Defendant in the total amount of \$11,005.26 (the "Default Judgment").

Analysis

Defendant contends that service was not properly made upon Defendant.

1. Validity of Service

The subject proof of service recites that service was done on Defendant by personal service on October 27, 2021:

3. a. Party served (specify name of party as shown on documents served):

CYNTHIA L WARRENDER

b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b whom substituted service was made) (specify name and relationship to the party named in item 3a):

4. Address where the party was served:

1076 DEER OAK PL, CONCORD, CA 94521-4542

5. I served the party (check proper box)

a. ☒ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): **10/27/2021** at (time): **6:27 PM**
CYNTHIA L WARRENDER, I delivered the documents to CYNTHIA L WARRENDER with identity confirmed by subject stating their name. The individual tried to refuse service by closing the door and did not state reason for refusal (documents left, seen by subject). The individual appeared to be a blonde-haired white female contact 45-55 years of age, 5'8"-5'10" tall and weighing 160-180 lbs.

See Proof of Service of Summons filed November 3, 2021 ("11/3/21 POSS"), ¶¶3-5.

The service was done by a registered process server. See 11/3/21 POSS at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant's supporting declarations proffer evidence to rebut this presumption. The declarations assert that the person served was actually Defendant's sister, Catherine Ellison. See Declaration of Cynthia Warrender ("Warrender Decl."), ¶3 *et seq.*; Declaration of Catherine Ellison ("Ellison Decl."), ¶3 *et seq.* A detailed recitation of the circumstances are recounted by Ms. Ellison, including that it was her who was handed the envelope by the process server on the purported date of service. See Ellison Decl., ¶¶3-4.

Defendant's evidence rebuts the presumption of valid service arising from the 11/3/21 POSS and demonstrates a lack of valid service. No opposition has been filed, including any counter declaration by the process server.

Accordingly, the Court concludes that substitute service was not properly effected on Defendant by virtue of the purported service on October 27, 2021.

The Court has authority to vacate the Default Judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

There is no evidence that Defendant failed to act diligently to seek to set aside the Default Judgment. Defendant states that she "just became aware of this judgment." Warrender Decl., ¶3.

2. Liens Extinguished

In addition, an Abstract of Judgment was issued by the Court on July 25, 2023. Because the

Default Judgment is being vacated, any execution or judgment lien(s) are extinguished as a matter of law. An execution or judgment lien is entirely dependent on the judgment. “A lien ... cannot exist apart from the judgment upon which it is based. Thus, in the ordinary course of events when the judgment is vacated by court order the lien will also cease to exist, because the effect of a vacating order is to eliminate the judgment. [Citation.] Once vacated, the status of the parties that existed prior to the judgment is restored and the situation then prevailing is the same as though the order or judgment had never been made. [Citation.]” *Bulmash v. Davis* (1979) 24 Cal.3d 691, 697.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default and Default Judgment are hereby SET ASIDE and VACATED.
3. Any and all writ(s) of execution and/or abstract(s) of judgment are hereby VACATED, RECALLED and QUASHED.
4. If any abstract(s) of judgment were recorded, Plaintiff shall, within thirty (30) days of notice of entry of this order, take all reasonable steps to prepare and record with the County Recorder a release of the abstract(s) of judgment and any judgment lien thereunder, pursuant to Code of Civil Procedure section 697.400 and all applicable law. Thereafter, Plaintiff shall file and serve a Notice of Release of Lien.
5. **Next CMC Date.** This matter is set for a Case Management Conference (CMC) on **February 18, 2026, 8:30 am**, in Department 34 of the Court (the “Next CMC Date”). Plaintiff shall be prepared to discuss the status of service at the Next CMC Date.

14. 9:00 AM CASE NUMBER: N25-0377
CASE NAME: KATHERINE STAUDT VS. UNEMPLOYMENT INSURANCE APPEALS BOARD
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Respondents California Unemployment Insurance Appeals Board (“CUIAB”) and Employment Development Department (EDD)* filed, on October 28, 2025, a Demurrer to Petitioner Katherine Staudt’s (“Petitioner”) Petition for Administrative Mandate regarding a decision of the CUIAB. The Demurrer was set for hearing on December 16, 2025. The hearing date and briefing schedule were set pursuant to a prior scheduling order issued by the Court. See Joint Case Scheduling Order entered October 6, 2025.

An Opposition was filed by Petitioner on November 21, 2025.

*The Demurrer is brought on behalf of the EDD, as well as the CUIAB. The EDD ostensibly appears as a respondent, although the EDD is not named in the caption of the operative

Petition as a named party. There are references to the EDD in the Petition. See Petition for Writ of Administrative Mandate filed February 20, 2025 (the “Petition”). In any event, CUIAB and the EDD are collectively referred to herein as the “Respondents.”

Background

This case involves a challenge to a decision (the “Administrative Decision”) of the CUIAB, relating to unemployment benefits. The Petition refers to “RESPONDENTS latest Administrative decision” which was issued August 15, 2024. See Petition, p. 3, ¶14-16 and p. 5, ¶36. The Petition refers to an “attached decision,” but does not actually attach any such decision as an exhibit to the filed Petition. See Petition, p. 3, ln. 18.

Respondents’ Demurrer provides more background. See Respondents’ Memorandum of Points and Authorities filed October 28, 2025 (“Respondents’ MPA”) p. 5 *et seq.*

Respondents’ MPA states that the subject Administrative Decision is the CUIAB’s decision issued August 15, 2024 affirming the administrative law judge’s ruling of June 3, 2024, citing to the administrative record.**

**The Respondents’ MPA repeatedly refers to “AR” in various citations, without defining that apparent shorthand reference. Nonetheless, this reference appears to be meant to refer to the administrative record relating to the Administrative Decision. However, the Court has no such administrative record filed or lodged with the moving papers. Even if it were filed or lodged, the Court cannot consider such materials on a demurrer, as discussed further below. The Court disregards any and all citations and purported factual averments based on apparent citations to the AR.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party’s pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman’s Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

1. Petitioner Failed to Timely File the Petition within Statutory Time Period.

Respondents first argue that the Demurrer should be sustained because the Petition was not timely filed with the Court and is therefore barred as a matter of law. See Respondents’ MPA, p. 8.

Respondents rely on matters extrinsic to the pleading, i.e. the assertion regarding

information as to the date of issuance of the subject Administrative Decision. See Respondents' MPA, p. 8, Ins. 27-28. Respondents contend the Administrative Decision was issued on August 15, 2024. *Id.* However, Respondents' citation refers only to the administrative record. As discussed above, the Court is disregarding any such matters.

Nonetheless, the Petition makes it clear, on its face, that that subject Administrative Decision was issued on **August 15, 2024**. See Petition, p. 3, ¶14-16 and p. 5, ¶36.

The Unemployment Insurance Code provides an outside time limit for judicial review of a decision of the CUIAB:

Notwithstanding any other provision of law, the right of the director, or of any other party except as provided by Sections 1241, 1243, and 5313, to seek judicial review from an appeals board decision shall be exercised **not later than six months after the date of the decision of the appeals board or the date on which the decision is designated as a precedent decision, whichever is later.**

Unemp. Ins. Code § 410 (emphasis added).

Six months after the date of the decision of the appeals board here was Saturday, February 15, 2025. Assuming the deadline rolled over to the next court day, the deadline would have been Tuesday, **February 18, 2025**.***

The Petition was filed on February 20, 2025. It is therefore, untimely. This is a jurisdictional bar to this Court's judicial review of the subject Administrative Decision. See *Tielsch v. City of Anaheim* (1984) 160 Cal.App.3d 576, 579 (court has no jurisdiction to entertain petition for extraordinary relief unless filed on or before the statutory deadline). The Demurrer is sustained on this ground.

*** Respondents contend the deadline was February 15, 2025. However, the Court concludes that the general weekend/holiday extension provisions of the Code of Civil Procedure apply. See Code Civ. Proc. §§ 12 and 12a; see *Deleon v. BART Dist.* (1983) 33 Cal.3d 456, 461 ("Section 12a applies to statutes of limitation in general" and applied to the time limit of Government Code section 945.6 for bringing an action against a public entity.). Even if the statutory weekend/holiday extensions did not apply, the Petition would nonetheless have been untimely. Also, "the date on which the decision is designated as a precedent decision" does not appear to have any application to the calculation of the deadline in this case and the "later" date is the February 18, 2025 date.

2. The Court Grants Petitioner Leave to Amend the Petition as to Whether Petitioner Can Plead a Cognizable Extension or Tolling of the Time to File.

Petitioner appears to concede the deadline to file the Petition was February 18, 2025. See Opposition, p. 5. However, Petitioner describes various circumstances which Petitioner argues justify the belated filing and extend or toll the running of the period to file.

Petitioner does not cite to any pleaded allegations regarding the extension or tolling of the statutory time or some basis for avoiding the statutory time bar.

Rather, Petitioner relies on a submitted declaration. The Court disregards the Declaration

of Petitioner filed with the Opposition. The Court will not consider—as it cannot on a demurrer—the factual averments in the declaration.

However, the Court will take the statements regarding the circumstances briefed by Petitioner’s Opposition as a proffer of facts that Petition may be able to plead upon an amendment of the operative Petition. For that reason, leave to amend is granted.

3. The Petition has Named the District as a Party.

Respondents also request that the Court dismiss the Petitioner for failure to join an indispensable party, Petitioner’s employer, the Mt. Diablo Unified School District (the “District”).

A plaintiff must join as parties all persons whose interests are so directly involved that the court cannot render a fair adjudication in their absence. Code Civ. Proc. § 389; see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 2:151. A failure to join an indispensable party may be raised by demurrer. *Id.* at § 2:185. A person is an indispensable party if his or her rights must necessarily be affected by the judgment. *Morrical v. Rogers* (2013) 220 Cal.App.4th 438, 463.

The Petition names the District as the “Real Party in Interest” and contains allegations as to its capacity. See Petition, Petition, p. 1, ¶12. Thus, the District has been “joined as a party in the action” as required by Code of Civil Procedure section 389.

Despite arguing that the Petition be dismissed for failure to join an indispensable party, Respondents concede the District has been named in the Petition. See Respondents’ MPA, p. 11, lns. 4-6 (“Here, although petitioner names her employer in the caption, there is no evidence, either on the court’s electronic docket or by way of a proof of service, that petitioner has served the District with the petition.”). What Respondents appear to actually be raising is the issue of non-service.

No authority is cited for the proposition that a demurrer lies based on non-service of an indispensable party otherwise named as a party in the operative pleading. It should also be noted that such a theory relies on extrinsic matters beyond the face of the pleadings.

The Court expresses no opinion as to whether, at some stage of the proceedings, a motion to dismiss the case might be cognizable under Code of Civil Procedure section 389(b) if Petitioner fails to join an indispensable party in the sense that Petitioner never serves the Petition to bring the District into the action. See *Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 24 (a motion to dismiss on the ground that a person has not been joined and justice requires that the action should not proceed in the person’s absence may be made as late as the trial on the merits).

Moreover, if service is not made such that the case is not at issue, then presumably, the case will not move forward to trial until that matter is addressed procedurally.

The Demurrer is overruled on this ground.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED IN PART and SUSTAINED IN PART, with leave to amend.
2. If necessary, the parties are encouraged to discuss amendment of the Scheduling Order to permit additional time if any further demurrer proceedings are anticipated following any amendment of the Petition.